

(Unofficial Translation)

Notification of the Ministry of Public Health

(No. 454) B.E. 2567

Issued by the virtue of Food Act B.E. 2522

Re. Natural mineral waters

It deems appropriate to amend the Notification of the Ministry of Public Health,
Re: Mineral water.

By the virtue of the provisions of Sections 5 paragraph 1 and Section 6 (3) (5) (6) (7) and (10) of the Food Act B.E. 2522, the Minister of Public Health hereby issues the Notification as follows:

Clause 1 The Notification of the Ministry of Public Health (No. 199) B.E. 2543 Re: Mineral Water, dated 19th September B.E. 2543 shall be repealed by this Notification.

Clause 2 Natural mineral water in sealed containers shall be categorized as the food with standard or quality requirement.

Clause 3 In this notification,

“Natural mineral water” means water which is obtained directly from underground water with contains certain minerals or trace elements that are health benefits according to the water source. It is not subjected to any treatment other than the permitted treatment.

Clause 4 There are five categories of natural mineral waters:

(1) A naturally carbonated natural mineral water is a natural mineral water which, after packaging, has the same or equivalent amount of carbon dioxide as in its water source.

(2) A decarbonated natural mineral is a natural mineral water which, after packaging, has less amount of carbon dioxide than the its water source.

(3) A non-carbonated natural mineral water is a natural mineral water which, after packaging, does not contain free carbon dioxide in the amount that allows a dissolve of hydrogen carbonate salts presented in the water.

(4) A natural mineral water fortified with carbon dioxide from the source is a natural mineral water which, after packaging, has more carbon dioxide content than that at emergence.

(5) A carbonated natural mineral water is a natural mineral water which has been added with carbon dioxide from another source during packaging.

Clause 5 Natural mineral water shall be treated and packaged in the area closed to the emergence source. Unless it has been transported from the source through closed pipe system that does not cause a contamination or change in the content of the constituents in natural mineral water.

Clause 6 Treatments of natural mineral water as prescribed in clause 5 shall not cause a change of the minerals that is its main constituents as follows;

- (1) A modification of gas content in the natural mineral water.
- (2) A separation of unstable constituents, such as compounds containing iron, manganese, sulfur and arsenic, by decantation and/or filtration process. If necessary, aeration may be used to accelerate the separation of liquid form the sediments.

Clause 7 Natural mineral water shall complied with the required qualities or standards as follows;

- (1) Clear without distributing of the sediments,
- (2) The elements contained in natural mineral water shall not in the amount that is harmful to health as indicated hereunder:

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| (2.1) Copper | not more than 1 mg/liter |
| (2.2) Manganese | not more than 0.4 mg/liter |
| (2.3) Borate | not more than 5 mg/liter (calculated as boron) |
| (2.4) Total arsenic | not more than 0.01 mg/liter |
| (2.5) Barium | not more than 0.7 mg/liter |
| (2.6) Cadmium | not more than 0.003 mg/liter |
| (2.7) Chromium | not more than 0.05 mg/ liter (calculated as total chromium) |
| (2.8) Lead | not more than 0.01 mg/liter |
| (2.9) Mercury | not more than 0.001 mg/liter |
| (2.10) Selenium | not more than 0.01 mg/liter |
| (2.11) Antimony | not more than 0.005 mg/liter |
| (2.12) Nickel | not more than 0.02 mg/liter |

- (3) Certain contaminants shall be as the following amounts indicated hereunder:

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| (3.1) Nitrite | not more than 0.1 mg/liter |
| (3.2) Nitrate | not more than 50 mg/liter |
| (3.3) Cyanide | not more than 0.07 mg/liter |
| (3.4) Bromate | not more than 10 mg/liter |
| (3.5) Surface active agents | not detected |
| (3.6) Mineral oil | not detected |

(3.7) Pesticides, polychlorinated biphenyls (PCBs) and polynuclear aromatic hydrocarbons (PAHs) shall contain no more than the amounts indicated in the Notification of the national environment board Re: the standard of groundwater quality, which issued by the virtue of the Enhancement and Conservation of National Environmental Quality act, B.E. 2535.

- (4) Microbial requirements;

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| (4.1) Coliforms | not detected in 250 ml |
| (4.2) <i>Escherichia coli</i> | not detected in 250 ml |
| (4.3) Enterococci | not detected in 250 ml |

(4.4) Spore-forming sulphite reducing anaerobes not detected in 250 ml

(4.5) *Pseudomonas aeruginosa* not detected in 250 ml

(4.6) Other microbial pathogens as indicated in the Notification of the Ministry of Public Health Re: microbial pathogens, which issued by the virtue of the Food Act B.E. 2522.

Clause 8 Food additive used shall comply with the requirements indicated in the Notification of the Ministry of Public Health Re: Food additive, which issued by the virtue of the Food Act B.E. 2522.

Clause 9 The producer or importer of natural mineral water for sale shall comply with the Notification of the Ministry of Public Health Re: Food Production Processes, Processing Equipment/ Utensils and Storage Practices. This might include the ultraviolet treatment or other treatments that does not result in a change of minerals content or other constituents as referred to its characteristics of the water source in order to prevent the post-contamination of microbial pathogen as necessary. The producer of natural mineral water shall also have the measures to prevent the contamination from hazards in the environment as well.

Clause 10 In addition to the safety requirements of packaging as indicated in the Notification of the Ministry of Public Health Re: Specification of Qualities or Standards of Food Packaging Made from Plastic, which issued by the virtue of the Food Act B.E. 2522, natural mineral water shall be packed in hermetically sealed retail containers in order to prevent the adulteration or contamination to water.

Clause 11 Labelling requirements;

(1) It shall comply with the requirements indicated in the Notification of the Ministry of Public Health Re: Labeling of Prepackaged Foods, which issued by the virtue of the Food Act B.E. 2522, except from the name of food, it shall be declared as “Natural Mineral Water” which may include the trade name attached to it.

(2) The category of the natural mineral waters as indicated in Clause 4 shall be declared.

(3) the location and name of the source of natural mineral water shall be declared,

(4) The minerals or trace elements giving characteristics to the natural mineral water shall be declared, this may also include other compositions as referred to the characteristics of the water source.

(5) Treatment in accordance with Clause 6(2) or Clause 9 (if any) shall be declared

(6) The warning sentences with alphabet height of not less than 2 millimeters shall be clearly visible by declaring in a red rectangle border with white background as follows;

(6.1) “contains fluoride” for natural mineral water with fluoride of more than 1 mg/liter

(6.2) “The product is not suitable for infants and children under the age of seven years” for natural mineral water with more than 1.5 mg/liter of fluorides.

Clause 12 the following sentences shall be prohibited to declare on the label;

(1) Claims concerning medicinal properties including preventive, alleviative or curative.

(2) The name of locality, hamlet or specified place may not form part of the product name or trade name unless it refers to a natural mineral water collected at the place designated by that name.

(4) The use of any statements or of any pictures or others which may lead to confusion or mislead to the public about the nature, origin, composition and properties of natural mineral water.

Clause 13 The producers and importers of the natural mineral water for sale including spring water which were approved prior to this Notification, as referred to the Notification of the Ministry of Public Health (No. 199) B.E. 2543 Re: mineral water, dated 19th September B.E. 2543, are granted to be sold in market but not more than two years after this Notification enter into force.

Clause 14 For spring water which are approved prior to this Notification, as referred to the Notification of the Ministry of Public Health (No. 199) B.E. 2543 Re: mineral water, dated 19th September B.E. 2543, shall apply for the application to amend the certificate of food detail declaration within two years after this Notification enter into force. When submitting for the application, the type of minerals or other chemical constituents giving its characteristics of water source and the indication of its origin shall be declared on the label.

Clause 15 This Notification shall enter into force on the day following one hundred and eighty days of its publication in the government gazette.

18th September B.E. 2567

(Signed) Somsak Thepsuthin

(Mr. Somsak Thepsuthin)

Minister of Public Health

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